Scotiabank Gold American Express card

Agreement Disclosure Statement

A. INFORMATION BOX

Initial Credit Limit	**$7,000.00**
Annual Interest Rate or Rates	Annual interest rates are in effect on the day the account is opened (whether or not a card is activated). Purchases: **19.99%** Cash advances**, balance transfers and *Scotia*† Credit Card Cheques: **22.99%** Your preferred annual interest rates will increase to standard rates of **24.99%** on purchases and **27.99%** on cash advances, balance transfers and *Scotia* Credit Card Cheques if you do not make your minimum payment by the payment due date **2** or more times in any **12** month period. This will take effect in the third statement period following the missed payment that caused the rates to increase. These rates will remain in effect until you make your minimum payments by the payment due date for **12** consecutive months.
Interest-free Grace Period	**21 days** You will benefit from an interest-free grace period of at least **21** days for new purchases‡ if you pay off your balance on your monthly statement in full by the payment due date. This grace period will be automatically extended to at least **25** days on your next monthly statement whenever you do not pay your balance in full by the payment due date. Upon paying your balance in full by the payment due date, this grace period will revert back to at least **21** days on your next monthly statement. There is no interest-free grace period for cash advances, balance transfers and *Scotia* Credit Card Cheques.
Determination of Interest	If interest is charged, it is calculated **daily**, but we only add it to your debt **once a month** on the last day of the statement period. We calculate the amount of daily interest by adding any new advances and subtracting any payment and then multiplying the unpaid balance of the debt on which interest is payable by the applicable annual interest rate, then dividing by **365** or **366** in a leap year. Interest is charged on a leap day in a leap year. Interest is charged at the rate applicable under the credit agreement both before and after the final payment date, maturity, default and judgment, until the account has been paid off in full.
Minimum Payment	**Interest Charges + Fees + $10.00 plus any overdue or overlimit amount.** Your minimum payment will include Interest Charges on your monthly statement, plus cash advance fee(s), plus any dishonoured payment fees, plus any dishonoured *Scotia* Credit Card Cheque fees, plus **$10.00**. In addition, amounts showing on your monthly statement as OVERDUE or OVERLIMIT must be paid immediately and will be added to the minimum payment.
Foreign Currency Conversion	**2.50%** For Scotiabank American Express Cards transactions in a foreign currency other than U.S. dollars, the amount is converted to U.S. dollars and then to Canadian dollars. For a transaction with your Scotiabank American Express Card, the exchange rate is determined by American Express on the date the transaction is processed by American Express. This exchange rate may be different from the exchange rate in effect on the transaction date. When the transaction is posted to your account, in addition to the exchange rate, you will be charged a foreign currency conversion of **2.50%** of the transaction amount. **1%** of the transaction amount will be retained by American Express. This mark-up applies to both debit and credit transactions on your Scotiabank American Express Cards. For Scotiabank American Express Card account payments and *Scotia* Credit Card Cheques, the exchange rate will be the posted rate charged to customers at any branch of The Bank of Nova Scotia on the date the transaction occurs. For any reversal of these transactions, the exchange rate will be determined in the same manner as of the date the transaction is reversed. For cash withdrawals made from ABMs outside of Canada using a *ScotiaCard* debit card to obtain a cash advance on the Scotiabank American Express Card account the exchange rate is determined by the appropriate network on our behalf on the date that the transaction is settled with that network. This exchange rate may be different from the exchange rate in effect on the transaction date. When the transaction is posted to your account, in addition to the exchange rate, you will be charged a foreign currency conversion of **2.50%** of the transaction amount. For a transaction with your Scotiabank American Express Card in Canadian dollars with a merchant located outside of Canada, a Cross Border Transaction Fee will be charged, equal to **2.50%** of the Canadian dollar amount of the transaction, **1%** of the transaction amount will be retained by American Express.
Annual Fees	**$99.00** for the primary cardmember card. **$29.00** for each additional card. Additional annual fee categories are set out below. If multiple annual fee categories apply to the account, the lowest applicable annual fee(s) is charged.

	Primary cardmember card: • **$79.00** if the primary cardmember is **65** years and over. **Each additional card:** • **$15.00** if the primary cardmember is **65** years and over. To be charged when the card is issued (regardless of activation) and will be billed to your first statement and once a year thereafter.
Other Fees	**To be charged on the day the transaction occurs (unless otherwise indicated):** Cash advance fee for each cash advance: • processed by Scotiabank or any financial institution in Canada: **$3.50** • obtained at any Scotiabank Automated Banking Machine (ABM) in Canada: **$3.50** • obtained at any non-Scotiabank ABM in Canada displaying the *Interac*+ symbol: **$3.50** • obtained at any ABM outside of Canada: **$7.50** • processed by Scotiabank or any financial institution outside of Canada: **$7.50** • obtained at any Global ATM (ABM) Alliance Bank outside of Canada: **$3.50** • cash-like transaction fee: **$4.00** • balance transfer fee: **$3.50** will apply to all balance transfers processed by Scotiabank Promotional low rate fee: **3.00%** (unless waived or reduced by us in the offer) of the amount of each transaction under a promotional low rate offer made to you (minimum fee of **$3.50**). A promotional rate means the rate is lower than your preferred annual interest rates. Promotional low rate offers may apply to cash advances, balance transfers or *Scotia* Credit Card Cheques. The exact promotional low rate fee will be disclosed to you at the time the offer is made. *Scotia* Credit Card Cheque fee: **$3.50** will apply to each transaction made using a *Scotia* Credit Card Cheque. Dishonoured payment fee: **$48.00**. Fee is charged for each credit card payment dishonoured by your financial institution on the date the payment is returned/dishonoured. Dishonoured *Scotia* Credit Card Cheque fee: **$48.00**. Fee is charged on the date the cheque is returned for each cheque which is returned due to insufficient credit available in your account. Replacements: Each replacement sales draft, cash advance draft or monthly statement: **$5.00**. Overlimit fee: **$29.00**. Fee is charged on the day your balance first exceeds your credit limit and then once per statement period (charged on the first day of the statement period) if your account remains overlimit from a previous statement period. +*Interac Inc.* owner of the mark *Interac*. The Bank of Nova Scotia authorized user of the mark.

The Bank reserves the right to waive any fees or charges in its discretion.

All rates, fees and other terms are effective as of November 28, 2017 and are subject to change. For information on current interest rates and fees, please call **1-888-882-8958** or visit scotiabank.com.

‡Annual fees, dishonoured payment fees, dishonoured *Scotia* Credit Card Cheque fees and overlimit fees are treated as purchases and the annual interest rate for purchases will apply to them. The interest-free grace period described above in this disclosure statement also applies to them.

**Cash advances: Cash advances include "cash-like transactions" which are monetary transactions posted to your account and include wire transfers, foreign currency, travellers cheques, money orders and gaming chips.

The information about your security fees, if applicable, are contained in another disclosure statement.

B. STATEMENTS

Monthly statements are only prepared on business days, so the time between statements will vary depending on the number of business days in the month. We will send a statement, on a regular periodic basis, at least once a month. If your account goes into default and we demand the balance in full, we will no longer send monthly statements. However, interest will continue to accrue on your account.

C. OPTIONAL SERVICES

If you have applied for *Scotia*‡ Credit Card Protection, please refer to the Application, Certificate of Insurance and Distribution Guide (Quebec) for insurance coverage details, including how to cancel coverage.

The minimum payment does not include premiums for this optional product. Premiums are treated as purchases and are subject to the interest rate that applies to purchases and to the interest-free grace period described in this disclosure statement. The premiums will be shown on the next statement after they are charged to your account.

D. TELL US ABOUT LOSS, THEFT OR UNAUTHORIZED USE

You will inform us immediately by telephone and in writing about any actual or suspected loss, theft or unauthorized use of your card, Password, PIN or cheques. You agree that we may assume you have authorized all transactions until you tell us otherwise.

If your card is lost or stolen, you will not be liable for any unauthorized use, as long as the unauthorized use does not involve use of your Password or PIN. You are liable for all card transactions incurred using your Password or PIN and all debt, including interest arising from such use.

If your cheques are lost or stolen, you will also be liable for any unauthorized activity until you advise us of the loss of your cheques or the unauthorized activity.

If you have previously authorized someone to use your card, or cheques, and have subsequently withdrawn your authorization, you will continue to be liable for all debts incurred by their use until they have been surrendered to the bank.

E. SECURITY and DEFAULT

Security
If your account is secured, the personal property held as security is indicated in your credit agreement.

Default Charges
If, under the credit agreement, you fail to make a payment when it becomes due or fail to comply with an obligation under the credit agreement, in addition to interest, we may impose charges for the sole purpose of recovering the costs reasonably incurred:
(a) for legal services retained to collect or attempt to collect the payment;
(b) in realizing on any security interest taken under the credit agreement or in protecting such a security interest, including the cost of legal services retained for that purpose; or
(c) in processing a cheque or other payment instrument that the borrower used to make a payment under the loan but that was dishonoured.